

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cory Walker	Team: Team # 9	CCRB Case #: 200107538	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 10/30/2001 11:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/30/2003	Precinct: 122
Date/Time CV Reported Mon, 11/05/2001 4:11 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/19/2001 12:51 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Silvestri	10250	884728	122 Det. Squad
2. DT3 Paul DiGiacamo	03505	886836	OCCB
3. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Robert Obrien	04350	875689	122 Det. Squad
2. DT3 Stephen Greco	05971	883978	PBSI

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Silvestri	Force: Det. Robert Silvestri used physical force against § 87(2)(b)	A . Unsubstantiated
B . DT3 Paul DiGiacamo	Abuse: Det. Paul DiGiacamo threatened to use force against § 87(2)(b)	B . Unsubstantiated
C . Officers	Force: Officers used physical force against § 87(2)(b) on November 2, 2001 in the confines of the Brooklyn House of Detention.	C . Unfounded
D . Officers	Abuse: Officers strip-searched § 87(2)(b) on November 2, 2001 in the confines of the Brooklyn House of Detention.	D . Unfounded

Synopsis

[Complaint initially reported to IAB on November 5, 2001. Complaint transferred to CCRB on November 19, 2001.]

On November 19, 2001, § 87(2)(b) filed a complaint on behalf of her son, § 87(2)(b) regarding an incident that occurred on November 2, 2001. In his CCRB interview, § 87(2)(b) stated that on this date, while he was being held at the Brooklyn House of Detention, three plainclothes males he believed were police officers, entered his cell, searched the cell, strip-searched him (allegation D.), and slapped him (allegation C.). § 87(2)(b) was being held at the Brooklyn House of Detention following his arrest for § 87(2)(b). § 87(2)(b) stated that before his arrest, off-duty Det. Paul DiGiacamo threatened to use force against him (allegation B.). § 87(2)(b) and Det. DiGiacamo, § 87(2)(b) were engaged in a verbal dispute at the time. Det. DiGiacamo called for police assistance and § 87(2)(b) was arrested. § 87(2)(b) alleges that during his arrest, Det. Robert Silvestri slapped him in the head (allegation A.). After a full investigation of this complaint, it is recommended that allegations (A) and (B) be *unsubstantiated*. It is recommended that allegations (C) and (D) be *unfounded*.

Summary of Complaint

§ 87(2)(b) states that on October 30, 2001, he was standing at the intersection of § 87(2)(b) and § 87(2)(b) in Staten Island, near his home at § 87(2)(b). Det. Paul DiGiacamo, § 87(2)(b) drove by him and accused him of “§ 87(2)(b)”. Det. DiGiacamo § 87(2)(b) exited his vehicle. § 87(2)(b) walk over to Det. DiGiacamo to confront him about his accusations. Det. DiGiacamo immediately told § 87(2)(b) to § 87(2)(b). He stated that he was a “New York City Detective” and that he could shoot § 87(2)(b) “right here” (allegation B.). Det. DiGiacamo then stated he would make § 87(2)(b) s life a “living hell.” § 87(2)(b) then walk away and returned to the corner where he had originally been standing. Approximately one hour later, two unmarked vehicles, one RMP, and Det. DiGiacamo’s vehicle arrived at the location. § 87(2)(b) was frisked, searched, and handcuffed by plainclothes officers. One of these officers, who § 87(2)(b) identified as Det. Silvestri (who was also § 87(2)(b) s arresting officer), slapped § 87(2)(b) in the head as he was being placed in an unmarked vehicle (allegation A.).

§ 87(2)(b) was arraigned on October 31, 2001 and held in the Brooklyn House of Detention, where he was held until § 87(2)(b) § 87(2)(b). § 87(2)(b) claims that on or around November 2, 2001, three plainclothes white males wearing gold badges entered his cell, questioned him, searched his cell, slapped him, and strip-searched him (allegations C. and D.). § 87(2)(b) states he was questioned about possible gang affiliation.

Results of Investigation

Det. DiGiacamo

Det. DiGiacamo was off-duty on October 30, 2002. He stated that he was about to § 87(2)(b) when he turned and saw § 87(2)(b) coming up § 87(2)(b). § 87(2)(b) was wearing what Det. DiGiacamo termed “gang gear” – a yellow bandana on his head and one in his pocket. § 87(2)(b) walked up to Det. DiGiacamo and asked, “What’s your fucking problem? What did I ever do to you?” Det. DiGiacamo told § 87(2)(b) to get off § 87(2)(b), otherwise he would have him

arrested. § 87(2)(b) began cursing at Det. DiGiacamo. § 87(2)(b) put his hands into his pocket and began to yell: “I’ll fucking blow your brains out! I’ll kill you.” Det. DiGiacamo again told § 87(2)(b) to leave § 87(2)(b). § 87(2)(b) then walked away. Det. DiGiacamo called the 122nd Pct and reported the situation. Approximately 4-6 detectives arrived at his home a short time later. A canvass was conducted using 2-3 marked and unmarked vehicles. Det. DiGiacamo was transported in an unmarked vehicle containing Det. Greco, Det. O’Brien, and Det. Silvestri. § 87(2)(b) was found at the corner of § 87(2)(b) and § 87(2)(b). The detectives exited their vehicle. § 87(2)(b) immediately began cursing at them. § 87(2)(b) was told to place his hands on the roof of their vehicle. § 87(2)(b) refused, and continued to curse at the officers. The detectives then placed § 87(2)(b)’s hands on the roof of the vehicle and searched him. § 87(2)(b)’s hands were then placed behind his back using minimal force. § 87(2)(b) was then handcuffed. Det. DiGiacamo could not recall specifically which officers did this. Det. DiGiacamo denied that any detective slapped or cursed at § 87(2)(b). Det. DiGiacamo denied that he threatened to use force against § 87(2)(b) or that he threatened to shoot him.

Det. DiGiacamo stated he had had a previous encounter with § 87(2)(b) when § 87(2)(b) and another individual were arrested for slashing his tires. According to Det. DiGiacamo, § 87(2)(b) has also spray painted a gang insignia on § 87(2)(b) and has backed his car into Det. DiGiacamo’s truck, causing a dent. He stated that he has made several calls to Staten Island narcotics commands regarding § 87(2)(b)’s drug activity. § 87(2)(b)

§ 87(2)(b) Det. DiGiacamo stated that he had had no face-to-face contact with § 87(2)(b) prior to this incident. He added that § 87(2)(b) is either a member or an associate of the § 87(2)(b).

Officers

PO Silvestri, Det. O’Brien, and Det. Greco were also interviewed in connection with this incident. All three officers traveled together in the same unmarked vehicle. These officers stopped and arrested § 87(2)(b). All three officers denied that any excessive force was used against § 87(2)(b) during his arrest. Det. O’Brien acknowledged that PO Silvestri handcuffed § 87(2)(b) and that, as § 87(2)(b) was intoxicated and flailing his arms, PO Silvestri did have to use a minimum degree of force to put his hands behind his back to be cuffed. PO Silvestri and Det. Greco were less forthcoming about the details of the arrest. Det. Greco did state that § 87(2)(b) was restrained by officers when he was being handcuffed, due to his erratic behavior. Det. Greco could not provide specific information as to who handcuffed § 87(2)(b) however. PO Silvestri specifically denied that he slapped § 87(2)(b). § 87(2)(g) PO Silvestri made no mention of any amount of force being used against § 87(2)(b) during his arrest. PO Silvestri also made no mention of the fact that he actually handcuffed § 87(2)(b). All officers denied ever being present at the Brooklyn House of Detention for the purpose of questioning § 87(2)(b).

Communications

Communication records show that at 10:35PM on October 30, 2001, a 10-86Q2 call for MOS aid was made from § 87(2)(b). Records show that the 122 Detective Squad, as well as two marked vehicles from the 122 Pct responded to the location. At 11:51PM, the 122 Detective Squad vehicle made a called stating that they had “one under” as of 11:00PM [see encl. 11a].

Complaint Report and Unusual Occurrence Report

These documents both note that § 87(2)(b) “followed the complainant [Det. DiGiacamo] to § 87(2)(b) ... The perp did approach him with his left hand inside of his right coat pocket and stated to the complainant, ‘I’m going to shoot you. You fucking cop asshole pussy. I’m gonna

blow your fucking head off,' placing the complainant in fear of serious physical injury" [see encl. 15a-d and encl. 16]. The complaint follow up notes that "the suspect did have a strong smell of alcohol on his breath at the time he was apprehended, appeared to be intoxicated, and became verbally abusive towards the apprehending officers" [see encl. 15b].

Visitation records

According to records obtained from the Brooklyn House of Detention, § 87(2)(b) had no visitors to his cell during the time he was held there pursuant to this arrest (October 31, 2001 to November 9, 2001) [see encl. 20a-c].

Conclusions and Recommendations

§ 87(2)(g) this is the first of two complaints filed by § 87(2)(b) regarding her son, § 87(2)(b) § 87(2)(g)

In this complaint, § 87(2)(b) alleges that Det. Paul DiGiacamo abused his authority by stating, "I could shoot you right here" and "I'll make your life a living hell" (allegation B.). He also alleges that he was slapped by PO Silvestri during his arrest (allegation A.). Finally, § 87(2)(b) claims that individuals he believed to be police officers slapped him and strip-searched him inside the confines of the Brooklyn House of Detention (allegations C. and D.).

§ 87(2)(g)

It is recommended that allegation (B) be *unsubstantiated*.

§ 87(2)(g)

it is recommended that allegation (A) be *unsubstantiated*.

§ 87(2)(g)

[REDACTED]

[REDACTED]. It is recommended that allegations (C) and (D) be *unfounded*.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: